

Haramaya University

College of Law

Conflict of Laws Syllabus

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COURSE INFORMATION

- **Course Title: Conflict of Laws (Private International Law)**
- **Course Code: Laws-452**
- **Credit Hours: 4 (four)**

Prerequisites

- Civil procedure I&II , majority of the substantive laws like
- Law of Persons, Law of Contracts, Federalism ,Constitutional
- Law I, Family law, Law of Succession, Law of Traders and
- Business Organizations, Law of Extra Contractual Liability

Objective of the course

- **General Objectives**

- The main objective of the course is to:
- Acquaint students with the fundamental concepts of conflict of laws and the various ways Ethiopian courts apply these rules to resolve disputes,
- Enable students to appreciate the complexities created by absence of a comprehensive Ethiopian conflict of law rules and how we could use experiences of foreign jurisdictions to develop our own rules,
- Differentiate the three choice of law approaches and analyze their relevance in the light of the current Ethiopian Legal system.
- Appreciate issues of interstate conflict of laws in Ethiopia;
- Resolve cases containing foreign elements

Specific objectives

- Explain the basic principles and major schools of thoughts of conflict of laws;
- Analyze cases containing foreign elements;
- Deal with problems caused by the absence of a conflict of laws statute or precedent system in Ethiopia;
- Critically analyze the practice of Ethiopian courts on conflict of laws;
- Suggest solutions for interstate conflict of laws problems that would arise in the future;
- Analyze which theory is suitable for interstate and international private cases;
- Discuss the sufficiency or otherwise of the existing Civil Procedure rules on execution foreign judgments;
- Discuss the relevance and problems in provisions of Federal courts establishment Proclamation (procl.25/96) on Judicial jurisdiction and Choice law in federal setup of Ethiopia ;
- Critically analyze the current Federal Draft Conflict of Laws Proclamation proposed by the Justice and Legal Systems Research Institute;

Course Outline

- **Part One: General Principles of conflict of laws**
- **Chapter One: General Introduction on Conflicts**
 - Naming
 - Definition and analysis of Conflict of laws
 - Definition of state and law in the context of conflict of laws
 - Origin and development of Conflict of laws
 - In General
 - In Ethiopia
 - Raison d'être of Conflict of Laws
 - Nature , Scope and Subject Matter of Conflict of laws
 - Interstate and international Conflict of Laws
 - Domicile , Nationality and Habitual Residence as connecting factors
 - The conflicts process

Chapter Two:

Judicial/Adjudicatory jurisdiction

- Introduction
- Theories of Judicial Jurisdiction
 - Territorial Power Theory
 - Minimum Contact and Fairness theory
- Grounds of Jurisdiction
 - Domicile, Nationality Habitual residence , Submission or consent
- Categories of Judicial Jurisdiction
 - Judicial Jurisdiction over persons (including corporations), over things and over status
- Limitations on the exercise of judicial jurisdiction
 - Limitations imposed by contract
 - Limitations imposed by the forum
- Judicial Jurisdiction of Ethiopian courts
 - In International Conflict
 - In Interstate Conflict
 - Jurisdiction Under the Federal Draft Conflict of laws
 - Ethiopia's past practice on Judicial Jurisdiction

Chapter Three: The Choice of Law Process

- Introduction
- Choice of law methods (Theories)
 1. The classical Choice of law method
 - Goals
 - The “general part” or “escape devices”
 - Characterization
 - *Renvoi*
 - Evasion/Fraud
 - Foreign Law
 - Application, burden and method of proof of foreign law
 - Failure to prove of foreign law
 - Exclusion of foreign law
 - The Incidental Issue
 - Criticisms against the Classical Choice of law Method



The “new” or modern Conflict of law theories

- Governmental Interest analysis
 - Criticisms against Governmental Interest
- Functional analysis (policy weighing approaches)
- The Value-Oriented approaches

Choice of Law in a Federal Set up

- **The American Experience**

- **Constitutional Limitations on choice of law**

- Full Faith and Credit Clause
 - Due Process Clause
 - Equal Protection Clause
 - Privilege and Immunities clause

Choice of law in FDRE (Federal Democratic Republic of Ethiopia)

- The law applied in diversity cases; Federal or state?
- Choice among state laws
- The relation ship between Federal and state laws
- Choice of Law Under Ethiopian Draft Conflict of law statute(s)
- The court practice

Chapter Four: Judgments and Arbitral Awards

- Validity in general
 - Recognition and Execution of Foreign Judgments
 - The rationale behind Recognition and Execution
 - Theories of Recognition and Execution
- Recognition of foreign judgments
- Enforcement of foreign judgments
- Defenses to Recognition and Execution
- Recognition and Execution of Arbitral awards



Part Two

Application of Conflict of Laws in Specific Areas of Law

Chapter five

Contractual obligations (Interstate and International

- Introduction
- Choice of Applicable Law in Contract
 - Doctrine of the proper law of Contract
- The Proper law of the Contract in the Federal Draft conflict of law
- Particular aspects of the Contract
 - Capacity to contract
 - Consent and its vices
 - Formal requirements
 - Illegality of object of the contract
- Protected Contracts
 - Consumer contracts
 - Individual contracts of employment
 - Rules under the Federal Draft conflict of laws
- The Practice of Ethiopian Courts

Chapter Six

Non-contractual obligations (Torts)

- Introduction
- The Main Rules Governing Choice of Law in Tort
- Rules governing choice of Law in tort under the Federal Draft Conflict of Laws
- Particular Torts
 - Personal Injuries and Damage to property
 - Unfair Competition
 - Product liability
 - Defamation
- The Practice of Ethiopian courts

Chapter Seven

Property

- Introduction
- General Rules governing Choice of law in Property
- Particular Rules Governing Dealings with Immovable and Immovable
 - Conveyances
 - Encumbrances
- Choice of Law Rules Governing Succession on Death
- Rules Governing Choice of law In property under the Federal Draft Conflict of laws
- The Practice of Ethiopian courts

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- **Chapter eight: Status (Interstate and International)**
 - **General Introduction on Status**
 - **Marriage**
 - Introduction
 - Formal Validity
 - Essential validity
 - Incidents if foreign marriage
 - Public policy
 - Matrimonial causes
 - Jurisdiction
 - Choice of law
 - Recognition of foreign judgments
 - Marital/Matrimonial Property

Chapter eight Contd..

Children

- Introduction
- Custody
- Legitimacy and legitimation
- Adoption
- Parental responsibility
- Determination of paternity

Chapter nine:

Agency, Partnerships and companies

- General Introduction
- Agency
- Partnerships
- Companies
 - Creation, recognition and dissolution of companies
 - Corporate powers and liabilities of companies
 - Shareholders, directors and officers of companies



Enjoy The Course
For It Deserves Mental Exercise!!